

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Trade Practices Act 1974* (Cth) by **AXA Asia Pacific Holdings Limited**

Table of contents

1	Person giving the Undertaking	3
2	Background	3
3	Conditions precedent to the ACCC's acceptance of this Undertaking	5
4	Commencement and termination of Undertaking	7
5	Sale of the Divestiture Business	7
6	Information	10
7	Conduct of Divestiture Business prior to Scheme Effective Date	11
8	Other obligations	11
9	Confidentiality and disclosure	11
10	No derogation	12
11	Costs	12
12	Notices	12
13	Definitions and interpretation	13
	Schedule 1	21
	Confidential Schedule 2	24
	Confidential Schedule 3	25
	Confidential Schedule 4	26
	Confidential Schedule 5	27
	Confidential Schedule 6	28
	Confidential Schedule 6	28
	Confidential Schedule 7	29
	Confidential Schedule 8	30
	Confidential Schedule 9	31
	Confidential Schedule 10	32
	Confidential Schedule 11	33
	Confidential Schedule 12	34
	Confidential Schedule 13	35
	Confidential Schedule 14	36
	Confidential Schedule 15	37
	Schedule 16	38

1 Person giving the Undertaking

- 1.1 This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by AXA Asia Pacific Holdings Limited ABN 78 069 123 011, on behalf of itself and its subsidiaries.

2 Background

- 2.1 On 17 December 2009, NAB and AXA APH entered into a Terms Deed, under which NAB agreed to acquire 100% of the shares in AXA APH. The transaction involves NAB acquiring 100% of the issued shares in AXA APH, retaining the Australian and New Zealand businesses of AXA APH and divesting AXA APH's Asian businesses to AXA SA (the **Proposed Acquisition**).
- 2.2 The acquisition of the issued shares in AXA APH is to be implemented by way of a scheme of arrangement under Part 5.1 of the Corporations Act, under which NAB will acquire all the shares in AXA APH held by minority shareholders and a share sale deed, under which NAB will acquire all the shares in AXA APH held by AXA SA.
- 2.3 Both NAB and AXA APH provide a range of wealth management products and services, including the supply of retail investment platforms. NAB supplies retail investment platforms including MLC MasterKey, MasterKey Custom, Plum and Navigator. AXA APH supplies retail investment platforms including Summit, Generations, iAccess and North.
- 2.4 Both NAB and AXA APH also provide financial advisory and planning services through networks of aligned financial planners. NAB's distribution network of aligned financial planners includes NAB Financial Planning, MLC Financial Planning, Garvan Financial Planning, Godfrey Pembroke and Apogee Financial Planning. AXA APH's distribution network of aligned financial planners includes AXA Financial Planning, Charter Financial Planning, Jigsaw Support Services, Genesys Wealth Advisors, ipac Securities, and Tynan Mackenzie. NAB and AXA APH also have relationships with non-aligned financial planners.
- 2.5 On 19 January 2010, the ACCC commenced its review of the Proposed Acquisition.
- 2.6 On 30 March 2010, AXA APH, AXA SA and NAB entered into a Framework Deed and AXA APH and NAB entered into a Merger Implementation Deed, which, together with a number of other agreements, govern the overall arrangements between the parties in respect of the Proposed Acquisition.
- 2.7 The ACCC conducted market inquiries and considered the information provided by the parties, industry participants and others. The ACCC's inquiries were aimed at assessing whether the Proposed Acquisition would have the effect or be likely to have the effect of substantially lessening competition in a market in contravention of section 50 of the *Trade Practices Act 1974* (the **Act**).
- 2.8 On 19 April 2010, the ACCC announced its decision to oppose the Proposed Acquisition.
- 2.9 The ACCC considered that AXA APH is on the cusp of delivering an innovative full service retail investment platform (the North platform based on the Bluedoor Software as licensed to NMCS under the Existing Bluedoor Agreement) that will play an important role in the near future in driving competition and is likely to be versatile in responding to future competing platform offerings. The ACCC considered that platform functionality, including innovation and quality of service, is the key driver of competition between retail investment platforms and having regard to the likely future competitive environment, functionality is likely to become an increasingly important basis of competition.
- 2.10 The ACCC considered that AXA APH's North platform is likely to closely compete with NAB's Navigator platform in the market for the supply of retail investment platforms for investors with complex investment needs. The ACCC considered that the Proposed Acquisition would remove a vigorous and effective competitor that would provide an effective competitive constraint on

market participants, and, in particular, strong competitive tension to NAB's Navigator platform in the form of platform functionality and innovation.

- 2.11 The ACCC concluded that given the high barriers to entry, new entrants are unlikely to emerge that would be successful in providing an effective competitive constraint to existing key players. The key barriers to entry are the initial sunk costs to establish a retail investment platform, scale and distribution. To be effective, new entrants must have sufficient scale to justify the initial and on-going investment and access to a sufficiently large network of financial planners.
- 2.12 The ACCC considered that the Proposed Acquisition would result in increased horizontal aggregation in the market for the supply of retail investment platforms for investors with complex needs and that this will increase NAB's share of funds under management (FUM) on its platforms which, in turn, would diminish NAB's incentives to compete on innovation (in particular, platform functionality and quality of service) and price.
- 2.13 The ACCC formed the view that the Proposed Acquisition would be likely to have the effect of substantially lessening, preventing or hindering competition in the Australian market for the supply of retail investment platforms for investors with complex investment needs, in contravention of section 50 of the Act.
- 2.14 In order to address the ACCC's competition concerns, AXA APH has, without admission, provided this undertaking pursuant to section 87B of the Act to the ACCC [dated XXXX] (this **Undertaking**). The terms on which AXA APH has agreed to divest the Divestiture Business are described in this Undertaking.
- 2.15 In support of the AXA APH Undertaking, and to address the ACCC's competition concerns, NAB has, without admission, provided an undertaking pursuant to section 87B of the Act to the ACCC [dated XXXX] (**NAB Undertaking**).
- 2.16 Upon divestment of the Divestiture Business to the Approved Purchaser, NAB and/or AXA APH (as the case may be) have agreed the following:
- (a) **Platform Administration Services:** The existing North Products will be retained and continue to be issued by the current AXA APH product issuers. NMMT (for itself and on behalf of the other relevant AXA APH product issuers) has entered into a Platform Administration Services Agreement with the Approved Purchaser to acquire platform administration services for these products through the North platform business operated by the Approved Purchaser using the Bluedoor Software.
 - (b) **Purchaser Product Capability:** Initially, the existing AXA APH's product issuers will continue to be the sole issuers of products that are administered by the Divestiture Business. In order to allow the Approved Purchaser to support its own products through the Divestiture Business, NAB will provide funding to the Approved Purchaser for the development of enhancements to the Bluedoor Software that will provide the capability to administer certain products of the Approved Purchaser.
 - (c) **Platform Enhancements:** The 2010 development plans for the Bluedoor Software, as contemplated by AXA APH, include the planned addition to that software of functionality for direct equities capability, model portfolios, dollar cost averaging and term deposits. The 2010 development plans also included functionality for margin lending and enhanced online/straight through processing, which have already been completed by AXA APH. To the extent the 2010 development plans are not completed at the time the Divestiture Business is transferred to the Approved Purchaser, NAB will provide funding to the Approved Purchaser to complete this work with respect to the Bluedoor Software.
 - (d) **North Products Exclusivity Arrangement:** NAB agrees to provide exclusivity rights to the Approved Purchaser in relation to the provision of platform administration services for the existing North products. In addition, NAB agrees not to use the intellectual property rights owned by AXA APH relating to the North Guarantees to replicate, or otherwise offer, the same or substantively similar products as the North Guarantees, to the extent

provided in this Undertaking. This exclusivity arrangement will operate for the Platform Administration Term.

- (e) **Transitional Services:** As at the Divestiture Date, the Approved Purchaser will not have developed the IT systems to enable it to host the Bluedoor Software. AXA APH (before the Scheme Implementation Date), NWMHL (after the Scheme Implementation Date) or their respective Related Bodies Corporate, will provide to the Approved Purchaser services to support a transition from the use of the IT systems used to supply the Divestiture Business as at the Divestiture Date to the Approved Purchaser's own IT systems (**IT Transition**) and to enable the delivery of the Platform Administration Services pending IT Transition, including continuing to host the Bluedoor Software and agree to sublease to the Approved Purchaser secure premises to accommodate the Personnel who accept an offer of employment from the Approved Purchaser.
- 2.17 The objective of this Undertaking and the NAB Undertaking is to address the ACCC's competition concerns which would otherwise arise as a consequence of the Proposed Acquisition.
- 2.18 This Undertaking and the NAB Undertaking aim to maintain competition through:
- (a) the strengthening of the Approved Purchaser as a viable, effective, stand-alone, independent and long term competitor for the supply of retail investment platforms for investors with complex investment needs;
 - (b) ensuring that the Approved Purchaser has the necessary assets, rights and obligations to allow it to operate as a viable going concern and to compete effectively in the market for the supply of retail investment platforms for investors with complex investment needs; and
 - (c) enabling the Approved Purchaser to provide vigorous and effective competition through the Divestiture Business, in particular on the basis of functionality, in the supply of retail investment platforms for investors with complex investment needs.

3 Conditions precedent to the ACCC's acceptance of this Undertaking

Approved Purchaser [SUBJECT TO MARKET CONSULTATION AND ACCC APPROVAL]

- 3.1 The ACCC has approved, as a condition precedent to accepting this Undertaking, [IOOF] as the Approved Purchaser of the Divestiture Business on the basis of the following:
- (a) the Approved Purchaser will complete the transaction contemplated by the Business Sale Agreement dated [XXXX], pursuant to which the Approved Purchaser will acquire from AXA APH the Divestiture Business;
 - (b) the Approved Purchaser is and will remain independent of and has no direct or indirect interest in AXA APH and NAB, except for holdings held on behalf of, or for the benefit of, a third party, including external investors, unitholders, policyholders or beneficiaries of funds (including superannuation, life insurance and other insurance funds), managed investment schemes and trusts where the entity holding the share is obliged to act in the interests of that third party;
 - (c) the Approved Purchaser is of good financial standing and has an intention to maintain and operate the Divestiture Business as a going concern;
 - (d) the Approved Purchaser is able to conduct the Divestiture Business effectively;
 - (e) the sale of the Divestiture Business to the Approved Purchaser will address any competition concerns of the ACCC, including the likely long term viability and competitiveness of the Divestiture Business under the ownership of the Approved Purchaser.

- 3.2 The ACCC may revoke [IOOF's] status as the Approved Purchaser of the Divestiture Business and its acceptance of this Undertaking if the ACCC becomes aware that the information provided to it was incorrect, inaccurate or misleading.

Agreements

- 3.3 Subject to clause 3.4, it is also a condition precedent of the ACCC's acceptance of this Undertaking that the conditions precedent for each of the agreements listed in subclauses 3.3(a) to (h) below have been satisfied and not waived and that each agreement has been duly executed and a copy of each executed agreement has been provided to the ACCC:
- (a) the Business Sale Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];
 - (b) the Platform Administration Services Agreement between the Approved Purchaser, NMMT Limited, AXA APH and NWMHL dated [XXXX];
 - (c) the Transitional Services Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];
 - (d) the Sale Escrow Deed entered into between NWMHL, AXA APH, the Approved Purchaser and the Approved Sale Escrow Agent dated [XXXX];
 - (e) the New Bluedoor Agreement between the Approved Purchaser and DST dated [XXXX];
 - (f) the Software Escrow Agreement between the Approved Purchaser, DST and the relevant software escrow service providers dated [XXXX];
 - (g) the Global Terms Sheet between DST, NWMHL, AXA APH, NMCS and the Approved Purchaser, dated [XXXX]; and
 - (h) the Transfer Deed between NMCS, DST and the Approved Purchaser dated [XXXX].
- 3.4 Notwithstanding the obligations on AXA APH in clause 3.3 for all conditions precedent to be satisfied and not waived prior to the ACCC's acceptance of this Undertaking, it is acknowledged that:
- (a) two conditions precedent will not be satisfied prior to the ACCC's acceptance of this Undertaking:
 - (i) the condition that the Scheme has been approved by the court whereby AXA APH receives an office copy of the Scheme orders (clause 2.1(d) of the Business Sale Agreement); and
 - (ii) the condition that the ACCC has confirmed in writing that it has no objection to the terms of this Undertaking and to the Approved Purchaser (clause 2.1(e) of the Business Sale Agreement);
 - (b) the condition precedent regarding the ATO Ruling (clause 2.1(c) of the Business Sale Agreement) may be waived by NAB prior to the ACCC's acceptance of this Undertaking.
- 3.5 AXA APH unconditionally represents and warrants to the ACCC that as at the date this Undertaking is executed and accepted by the ACCC:
- (a) each of the agreements referred to in clause 3.3 above constitutes a legal, valid and binding obligation of each party thereto and is enforceable in accordance with its terms;
 - (b) subject to clause 3.4, all conditions precedent to each party performing their respective obligations under each of the agreements referred to in clause 3.3 above have been satisfied and not waived.

- 3.6 [The contents of this clause are set out in Confidential Schedule 3.]
- 3.7 Subject to clause 3.4, AXA APH must provide the ACCC with all necessary information and documentation to enable the ACCC to decide whether the conditions precedent in each of the agreements referred to in clause 3.3 above have been satisfied and not waived.
- 3.8 The ACCC may revoke its decision that the conditions precedent for each of the agreements listed in clause 3.3 above have been satisfied (subject to clause 3.4) if the ACCC becomes aware that the information provided to it was incorrect, inaccurate or misleading including without limitation the representation of AXA APH in clause 3.5 above.

4 Commencement and termination of Undertaking

Commencement

- 4.1 This Undertaking comes into effect when:
- (a) the Undertaking is executed by AXA APH; and
 - (b) the Undertaking so executed is accepted by the ACCC.

Termination

- 4.2 This Undertaking terminates on the earlier of:
- (a) the date on which the sale of the Divestiture Business to the Approved Purchaser is completed, the Scheme Implementation Date has passed, and the ACCC confirms in writing that AXA APH has fulfilled its obligations under this Undertaking; or
 - (b) the date the ACCC consents in writing to the withdrawal of this Undertaking in accordance with section 87B of the Act.
- 4.3 This Undertaking will also terminate if the Framework Deed is lawfully terminated in accordance with its terms prior to the completion of the sale of the Divestiture Business, and AXA APH advises the ACCC in writing that it no longer proposes to dispose of the Australian and New Zealand businesses of AXA APH to NAB.

5 Sale of the Divestiture Business

Divestiture Business

- 5.1 The Divestiture Business consists of a platform administration business carried on by AXA APH using the software licensed to NMCS under the Existing Bluedoor Agreement to facilitate the administration of the North Products.
- 5.2 The sale and transfer of the Divestiture Business required by this Undertaking and the NAB Undertaking specifically consists of:
- (a) the assignment of the goodwill in the Divestiture Business to the Approved Purchaser;
 - (b) an assignment of the Business Manual IP (as described in Confidential Schedule 4) to the Approved Purchaser;
 - (c) an assignment of the North Trademarks (as described in Confidential Schedule 6) to the Approved Purchaser;
 - (d) a transfer of rights and obligations under existing Statements of Works between NMCS and DST relating to the Platform Enhancements (as described in Confidential Schedule 8) and the Purchaser Product Capability to the Approved Purchaser;

- (e) a transfer of all Business Records to the Approved Purchaser, (other than those business manuals in which intellectual property rights are being licensed (as described in Confidential Schedule 5), except where they are required by law to be kept by AXA APH, in which case AXA APH will provide or procure the provision of a copy of those records to the Approved Purchaser on the Divestiture Date;
- (f) the Personnel to be made an offer of employment by the Approved Purchaser;
- (g) the grant to the Approved Purchaser of a non-exclusive, perpetual, irrevocable and royalty-free licence with the right to sub-license, to use, reproduce, develop and otherwise exploit the Licensed IP;
- (h) at the option of the Approved Purchaser, the provision of Transitional Services that are required for the Approved Purchaser to conduct the Divestiture Business from the Divestiture Date for a transitional period.

Sale of the Divestiture Business

- 5.3 AXA APH must divest the Divestiture Business to the Approved Purchaser in accordance with this Undertaking.
- 5.4 AXA APH represents and warrants that:
 - (a) at the Divestiture Date, the Divestiture Business comprises all of the material assets, rights and Personnel required by the Approved Purchaser to perform the Platform Administration Services, save for the exclusions specified at clause 1.1 of Schedule 16;
 - (b) at the Divestiture Date, the Approved Purchaser will have sufficient human and technical resources to perform the Platform Administration Services, save for the exclusions specified at clause 1.2 of Schedule 16.

Release of Personnel

- 5.5 AXA APH must not directly or indirectly discourage any Personnel from continuing or seeking employment with, or providing services to, the Approved Purchaser of the Divestiture Business.
- 5.6 AXA APH must procure the release of the Personnel who accept an offer of employment from the Approved Purchaser, with effect from the Divestiture Date, from:
 - (a) any obligation to provide services to AXA APH and its Related Bodies Corporate; and
 - (b) any non-compete or similar restraint of trade obligation, to the extent that such obligation would otherwise prevent the staff member or person from performing his or her contemplated role in relation to the Divestiture Business.
- 5.7 From the date of this Undertaking until the Scheme Implementation Date, AXA APH must not procure, promote or encourage the transfer from the Approved Purchaser any of the Personnel who accept an offer of employment from the Approved Purchaser.

Separation of AXA APH from the Divestiture Business

- 5.8 AXA APH must ensure that from the date of signing of the Business Sale Agreement, there are no material contracts solely or predominantly relating to the Divestiture Business as operated by AXA APH, other than:
 - (a) the Existing Bluedoor Agreement;
 - (b) each contract between AXA APH or one of its Related Bodies Corporate and a third party which is relevant to the services and technical resources to be provided or made available to the Approved Purchaser under the Transitional Services Agreement or in connection with the Platform Enhancements;

- (c) each service contract to which a contractor and AXA APH or one of its Related Bodies Corporate is a party;
- (d) each employment agreement between an employee and NMLA; and
- (e) each contract to which AXA APH or one of its Related Bodies Corporate is a party which is relevant to the Excluded Services.

Divestiture Completion Process

- 5.9 AXA APH must complete the sale of the Divestiture Business to the Approved Purchaser prior to the Scheme becoming Effective.
- 5.10 AXA APH, along with NAB and the Approved Purchaser, must appoint an Approved Sale Escrow Agent.
- 5.11 AXA APH must on the Sale Escrow Delivery Date deliver to the Approved Sale Escrow Agent all Completion Escrow Documents.
- 5.12 AXA APH must ensure that the Completion Escrow Documents are held in escrow until the Approved Sale Escrow Agent is notified in writing that AXA APH has received an office copy of the Scheme Orders following the second court hearing to approve the Scheme.
- 5.13 AXA APH must immediately upon receipt of a written notice from NAB that it has failed to provide the unconditional written confirmation to the ACCC required by clause 4.2 of the NAB Undertaking take all action within its power to delay or postpone the hearing by the Court of an application approving the Scheme in accordance with sections 411(4)(b) of the Corporations Act unless and until AXA APH receives further written notice from NAB that the conditions in clause 4.2 of the NAB Undertaking have been unconditionally fulfilled or waived by the ACCC in its sole discretion.
- 5.14 Eight Business Days prior to the date that is scheduled as the Scheme Effective Date in the Explanatory Memorandum, AXA APH must deliver to the ACCC unconditional written confirmation that as at that date:
 - (a) the representations and warranties made by AXA APH to the ACCC pursuant to clauses 3.5, 5.4 and 5.23 are true and correct;
 - (b) AXA APH has and continues to duly and punctually comply with its obligations under the agreements listed in clause 3.3;
 - (c) No party has notified AXA APH that AXA APH is in breach of any agreement listed in clause 3.3;
 - (d) AXA APH is not aware of any circumstance that is likely to cause it or any other party to any agreement referred to in clause 3.3 to be in breach of any agreement listed in clause 3.3.
 - (e) AXA APH is not aware of any material change to any agreement listed in clause 3.3. (except as otherwise notified to the ACCC);
 - (f) the Requirements Documentation is consistent in all material respects with, and no material deviation has occurred from, the Platform Enhancements SOW, the Purchaser Product Capability SOW and the scope of the requirements described in Confidential Schedule 8 and Confidential Schedule 9 respectively;
 - (g) AXA APH is not in breach of this Undertaking and that it does not anticipate that it is likely that it will breach the Undertaking.
- 5.15 AXA APH undertakes that should it fail to provide the unconditional written confirmation to the ACCC required by clause 5.14 of this Undertaking, it must immediately take all action within its

power to delay or postpone any further action required of it or NAB to obtain an order pursuant to section 411(4)(b) of the Corporations Act unless and until the conditions in clause 5.14 are unconditionally satisfied or waived by the ACCC in its sole discretion.

- 5.16 AXA APH must provide the ACCC a notice in writing 5 Business Days before the scheduled date of any court hearing to approve the Scheme under section 411(4)(b) of the Corporations Act, and which confirms that the Completion Escrow Documents remain held in escrow.
- 5.17 AXA APH must direct the Approved Sale Escrow Agent to furnish information to the ACCC in the time and form requested by the ACCC and respond to any ACCC queries in respect of the Completion Escrow Documents.
- 5.18 AXA APH must:
- (a) immediately notify the Approved Sale Escrow Agent in writing upon receipt of an office copy of the Scheme Orders, for the purpose of dating and releasing the Completion Escrow Documentation in order to facilitate the completion of the sale of the Divestiture Business to the Approved Purchaser; and
 - (b) notify the ACCC in writing immediately upon completion of the sale of the Divestiture Business to the Approved Purchaser.
- 5.19 AXA APH must not lodge with Australian Securities and Investments Commission, pursuant to section 411(10) of the Corporations Act, an office copy of the Scheme Orders unless and until:
- (a) the completion of the sale of the Divestiture Business to the Approved Purchaser has occurred; and
 - (b) AXA APH has notified the ACCC in accordance with clause 5.18(b) above.
- 5.20 The contents of this clause are contained in Confidential Schedule 2.

Termination of Existing Bluedoor Agreement

- 5.21 AXA APH must, immediately after completion of the sale of the Divestiture Business to the Approved Purchaser, terminate the Existing Bluedoor Agreement.

Transitional Services

- 5.22 At the option of the Approved Purchaser, AXA APH (prior to the Scheme Implementation Date) and NAB (after the Scheme Implementation Date) will provide or procure the provision to the Approved Purchaser of Transitional Services (as described in clause 2 of Schedule 1) in relation to the operation of the Divestiture Business.
- 5.23 AXA APH represents and warrants that the Transitional Services are all the services required by the Approved Purchaser from the Service Provider to conduct the Divestiture Business from the Divestiture Date in the same or similar manner as conducted by AXA APH in the ordinary course of business during the 12 month period prior to the Divestiture Date, save for the exclusions specified at clauses 1.1(a) and 1.1(b) of Schedule 16.
- 5.24 AXA APH, prior to the Scheme Implementation Date, will provide or procure the provision to the Approved Purchaser of Transitional Services with the degree of professional skill, care, competence and diligence reasonably expected of a provider of the same or similar services.

6 Information

- 6.1 AXA APH and its Related Bodies Corporate will respond in a timely manner to any queries or requests for information made by the ACCC about this Undertaking.

- 6.2 The ACCC may direct AXA APH in respect of its compliance with this Undertaking to, and AXA APH will:
- (a) furnish information, documents and materials to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce information, documents and materials to the ACCC within its custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) direct its personnel, including its directors, contactors, managers, officers, employees and agents, to attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 6.3 Information given in response to a direction under clause 6.1 or information, documents and material furnished or produced in response to the ACCC's direction under clause 6.2 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 6.4 Any request or direction made by the ACCC under clause 6.1 will be notified to the Group General Counsel of AXA APH in accordance with clause 12.2.
- 6.5 Nothing in this clause 6 requires the provision of information in respect of which AXA APH has a claim of legal professional privilege.

7 Conduct of Divestiture Business prior to Scheme Effective Date

- 7.1 Prior to the Scheme Effective Date, AXA APH will not, and will ensure that its Related Bodies Corporate will not (except as agreed between the parties and the ACCC):
- (a) manage and conduct the Divestiture Business other than in its ordinary and usual course;
 - (b) dispose of, agree to dispose of, encumber or grant an option over, or declare itself trustee of, the Divestiture Business or any of the assets comprising the Divestiture Business;
 - (c) hire, terminate or vary the terms of employment or engagement of any of the Personnel, or agree to do any of those things, except in the ordinary course of business or as required by law; and
 - (d) terminate or materially alter the Existing Bluedoor Agreement.

8 Other obligations

- 8.1 Prior to the Scheme Implementation Date, AXA APH will comply with any request from the Approved Independent Auditor appointed pursuant to clause 11.4 of the NAB Undertaking for information or documents that the Approved Independent Auditor considers necessary for the purposes of fulfilling the terms of the Approved Independent Auditor's appointment under the NAB Undertaking.

9 Confidentiality and disclosure

- 9.1 AXA APH and the ACCC agree that Confidential Schedule 2 of this Undertaking will remain confidential until the completion of the sale of the Divestiture Business to the Approved Purchaser.
- 9.2 AXA APH and the ACCC agree that Confidential Schedules 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, and 15 of this Undertaking will remain confidential.

- 9.3 AXA APH acknowledges that the ACCC may, subject to clauses 9.1 and 9.2:
- (a) make this Undertaking publicly available; and
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 9.4 Nothing in this clause 9 prevents the ACCC from disclosing such information as:
- (a) is required by law;
 - (b) is permitted by s155AAA of the Act;
 - (c) is reasonably necessary for the purpose of enforcement action under section 87B of the Act; or
 - (d) is necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with the Undertaking, save that noting in this clause 9.1(d) shall operate to permit the disclosure of any Confidential Schedules, other than as permitted by clause 9.1 above
- 9.5 Nothing in this clause 9 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

10 No derogation

- 10.1 The Undertaking does not prevent the ACCC from taking enforcement action at any time, whether during or after the period of this Undertaking, in respect of any breach by AXA APH of any term of the Undertaking.
- 10.2 Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that AXA APH does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

11 Costs

- 11.1 AXA APH must pay all of its own costs incurred in relation to this Undertaking.

12 Notices

- 12.1 Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Name: Australian Competition & Consumer Commission
Address: 23 Marcus Clarke Street, Canberra, ACT, 2601
Fax Number: (02) 6243 1212
Attention: Executive General Manager, Mergers and Acquisitions Group

- 12.2 Any notice or communication to AXA APH pursuant to this Undertaking must be sent to:

Name: AXA Asia Pacific Holdings Limited
Address: Level 10, 750 Collins Street, Docklands VIC 3008 Australia
Fax Number: (03) 9614 5298
Attention: Group General Counsel

with a copy to:

Name: Mallesons Stephen Jaques
Address: Level 50, 600 Bourke Street, Melbourne Vic 3000
Fax Number: 03 9643 5999
Attention: Caroline Coops

- 12.3 If AXA APH or the ACCC gives the other three Business Days notice of a change to its address or fax number, any notice or communication is only given to the relevant entity if it is delivered, posted or faxed to the most recently advised address or fax number.

13 Definitions and interpretation

Definitions

- 13.1 Unless otherwise specified, the meanings of the terms used in this Undertaking are set below.

Term	Meaning
ACCC	Australian Competition and Consumer Commission.
Act	Trade Practices Act 1974 (Cth).
Approved Independent Auditor	has the meaning as referred to in clause 11.4 of the NAB Undertaking.
Approved Independent Project Manager	has the meaning as referred to in clause 9.5 of the NAB Undertaking.
Approved Purchaser	[IOOF] and its Related Bodies Corporate, who is the purchaser of the Divestiture Business that has been approved by the ACCC. [SUBJECT TO MARKET CONSULTATION AND ACCC APPROVAL]
Approved Sale Escrow Agent	DLA Phillips Fox, which has been approved by the ACCC and appointed by NAB, AXA APH, and the Approved Purchaser as escrow agent for the sale of the Divestiture Business by AXA APH to the Approved Purchaser.
AXA APH	AXA Asia Pacific Holdings Limited, ABN 78 069 123 011, together with its Subsidiaries.
AXA SA	AXA of 25 avenue Matignon, 75008 Paris, France.
Bluedoor Software	the software product known as “Bluedoor” (formerly known as “Wealth.net”) which is licensed to the Approved Purchaser by DST pursuant to the New Bluedoor Agreement (which includes, but is not limited to the North Configuration), as modified from time to time by or on behalf of the Approved Purchaser (including pursuant to the Statements of Work).
Business Day	a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.
Business Manual IP	all Intellectual Property Rights owned by AXA APH subsisting in the Business Manuals used in conducting the Divestiture Business (excluding any Licensed IP) (such Business Manuals being those described in Confidential Schedule 4) but only to the extent that those Business Manuals relate to the Divestiture Business.
Business Manuals	manuals and other documentation describing policies, procedures and processes.
Business Records	all books of account, accounts, records and data of whatever kind and all other documents, in each case in the possession or control of AXA APH and relating solely or predominantly to the Divestiture Business.

Term	Meaning
Business Sale Agreement	the agreement in respect of the sale and purchase of the Divestiture Business between NWMHL, AXA APH and the Approved Purchaser, dated [date], attached at Confidential Schedule 7.
Commencement Date	the date on which this Undertaking comes into effect under clause 4.
Corporations Act	Corporations Act 2001 (Cth)
Completion Escrow Documentation	documents required to be executed by the Approved Purchaser to complete the sale of the Divestiture Business by AXA APH to the Approved Purchaser which will be held in escrow, being each of the following: (a) a duly executed (but undated) transfer deed in respect of the goodwill of the Divestiture Business; (b) one or more duly executed (but undated) deeds of assignment in respect of the Business Manual IP; (c) one or more duly executed licence agreements in respect of the Licensed IP; and (d) one or more duly executed deeds of assignment in respect of the North Trade Marks (and any applications for registration of any North Trade Marks) together with any certificates of registration for them.
Divestiture Business	the business described in clause 5.2.
Divestiture Date	the completion of the sale of the Divestiture Business by AXA APH to the Approved Purchaser pursuant to the terms of this Undertaking.
DST	DST Global Solutions (Bluedoor) Pty Limited (ABN 47 110 855 377)
Effective	means, when used in relation to the Scheme, the coming into effect, pursuant to section 411(10) of the Corporations Act, of the order of the court made under section 411(4)(b) (and, if applicable, section 411(6)) of the Corporations Act in relation to the Scheme.
Excluded Services	has the meaning set out in the Transitional Services Agreement attached at Confidential Schedule 11.
Existing Bluedoor Agreement	the current Master Licence and Services Agreement between DST and NMCS dated 30 June 2008.
Explanatory Memorandum	the explanatory memorandum to be prepared in respect of the Scheme and to be despatched by AXA APH to AXA APH shareholders in accordance with the Merger Implementation Deed.
Framework Deed	the deed of that name between AXA APH, AXA SA and NAB dated 30 March 2010.
Global Terms Sheet	the agreement between DST, NWMHL, AXA APH, NMCS and the Approved Purchaser, dated [XXXX], attached at Confidential Schedule 13.

Term	Meaning
Intellectual Property Rights	(a) all rights conferred by statute, common law or in equity and subsisting anywhere in the world in relation to: • registered and unregistered copyright; • inventions (including patents, innovation patents and utility models); • confidential information, trade secrets, technical data and Know-how; • registered and unregistered designs; • registered and unregistered trade marks; and (b) circuit layout designs, topography rights and rights in databases; (c) any other rights resulting from intellectual activity in the industrial, commercial, scientific, literary or artistic fields which subsist or may hereafter subsist; and (d) any applications and the right to apply for registration of any of the above, but excluding moral rights, and similar personal rights, which by law are non-assignable.
Know-how	Information, know-how and techniques (whether or not confidential and in whatever form held) including: (a) formulae, discoveries, design specifications, drawings, data, manuals and instructions; (b) customer lists, sales marketing and promotional information; (c) business plans and forecasts; and (d) technical and other expertise.
Licensed IP	(a) the Product Rules IP; (b) all Intellectual Property Rights owned by AXA APH subsisting in the North Disclosure Documents as described in Confidential Schedule 5, and (c) all Intellectual Property Rights owned by AXA APH subsisting in any Business Manuals relating to the North Products and which do not relate solely to the Divestiture Business as described in Confidential Schedule 5; as those things exist as at Divestiture Date, and, for the avoidance of doubt, excludes any Intellectual Property Rights subsisting in items (a) to (c) above to the extent that they relate to the hedging services provided to AXA APH by AXA Hedging Services.
Merger Implementation Deed	the deed of that name between AXA APH and NAB dated 30 March 2010.
NAB	National Australia Bank Limited, ABN 12 004 044 937, together with its Subsidiaries including National Wealth Management Holdings Limited. For the avoidance of doubt, NAB includes AXA APH together with its Subsidiaries from the Scheme Implementation Date (excluding AXA APH Asian Subsidiaries and NMI).
New Bluedoor Agreement	the agreement between the Approved Purchaser and DST dated [XXXX].
NMCS	N M Computer Services Pty Ltd (ABN 44 001 239 667).
NMI	National Mutual International Pty Limited (ABN 13 004 484 351).
NMLA	The National Mutual Life Association of Australasia Limited (ABN 72 004 020 437).
NMMT	NMMT Limited (ABN 42 058 835 573)

Term	Meaning
North Configuration	the parameters, settings and other configurations relating to, and modifications to and enhancements of, the software product known as "Bluedoor" (formerly known as "Wealth.net") which are licensed to NMCS by DST under the Existing Bluedoor Agreement, or which have been or will be developed by or on behalf of AXA APH prior to the Divestiture Date (including those that have been or will be supplied to NMCS by DST prior to the Divestiture Date).
North Disclosure Documents	the product disclosure statements relating to the Wealth Fund and the North Guarantees; and the North IDPS guide, both as at the Divestiture Date.
North Guarantee Deed Poll	the deed poll of that name made by National Mutual Funds Management Limited dated 24 October 2008, as modified or replaced from time to time.
North Guarantees	the North Super and Pension Guarantees and the North Investment Guarantees.
North IDPS	the investor directed portfolio service presently known as the "North IDPS" established under the North IDPS Deed Poll made by NMMT Limited dated 18 April 2008, as modified or replaced from time to time.
North Investment Guarantees	the "Protected Investment" and "Protected Growth" guarantees offered to North IDPS investors by National Mutual Funds Management Limited under the North Guarantee Deed Poll as set out in the relevant North Disclosure Documents, as supplemented, modified or replaced from time to time.
North Products	(a) interests in the Wealth Fund (including North Super and Pension Guarantees) issued by N.M. Superannuation Proprietary Limited; (b) the North IDPS operated by NMMT Limited; and (c) the North Guarantees issued by National Mutual Funds Management Limited excluding, for the avoidance of doubt, each of the accessible financial products which comprise the menu of investment options made available to Wealth Fund members and North IDPS investors, as set out in the "North Investment Options" disclosure document issued by N.M. Superannuation Proprietary Limited and NMMT, as supplemented, modified or replaced from time to time.
North Products Exclusivity Arrangement	the exclusivity arrangement discussed in clause 7 of the NAB Undertaking.
North Super and Pension Guarantees	the "Protected Investment", "Protected Growth" and "Protected Retirement" guarantee options offered to Wealth Fund members by N.M. Superannuation Proprietary Limited as set out in the relevant North Disclosure Documents, as supplemented, modified or replaced from time to time.
North Trade Marks	Those trademarks identified in Confidential Schedule 6.
NWMHL	National Wealth Management Holdings Limited ABN 73 093 329 983
Personnel	all employees and contractors necessary for the operation of the Divestiture Business, as identified in Confidential Schedule 3, and any other person not identified in Confidential Schedule 3 who is hired by AXA APH solely in relation to the Divestiture Business after the date of this Undertaking in the ordinary course of business or as required by law, who will each receive an offer of employment from the Approved Purchaser.
Platform Administration Services	the services described in Schedule 1.
Platform Administration Services Agreement	the agreement attached at Confidential Schedule 10 between the Approved Purchaser, NWMHL and NMMT dated [XXXX] under which NMMT agrees to acquire Platform Administration Services from the Approved Purchaser in relation to the North Products.

Term	Meaning
Platform Administration Term	the period from the Divestiture Date until three years after the Purchaser Product Completion Date unless the Platform Administration Services Agreement is terminated earlier by the Approved Purchaser or the ACCC consents to an earlier date in writing pursuant to the terms of the NAB Undertaking.
Platform Enhancements	the enhancements to the Bluedoor Software described in Confidential Schedule 8.
Platform Enhancements SOW	the statement of work entered into initially by DST and NMCS in accordance with the Global Terms Sheet, and the benefit of which is transferred from NMCS to the Approved Purchaser in accordance with the Transfer Deed, pursuant to which DST agrees to develop the Platform Enhancements as provided in Confidential Schedule 14 to this Undertaking.
Product Rules IP	all Intellectual Property Rights owned by AXA APH in business processes and operational rules relating to the North Products, defining the specific product-related rules necessary for the Bluedoor Software to administer the North Product offerings.
Purchaser Product Capability	enhancements to the Bluedoor Software which provide it with the capability to administer superannuation products issued by, and an investor directed portfolio service operated by, and an allocated pension product issued by a Related Body Corporate of the Approved Purchaser, in addition to the capability to administer the North Products, which enhancements are more particularly described in Confidential Schedule 9 to this Undertaking.
Purchaser Product Capability SOW	the statement of work entered into initially by DST and NMCS in accordance with the Global Terms Sheet, and the benefit of which is transferred from NMCS to the Approved Purchaser in accordance with the Transfer Deed, pursuant to which DST agrees to develop enhancements to the Bluedoor Software to provide the Purchaser Product Capability as provided in Confidential Schedule 15 to this Undertaking.
Purchaser Product Completion Date	the date upon which the Approved Independent Project Manager notifies the ACCC that the Purchaser Product Capability has been completed in accordance with the NAB Undertaking.
Related Body Corporate	has the meaning given to that phrase by section 9 of the Corporations Act.
Requirements Documentation	the requirements specifications contemplated by the respective Statements of Work, to be put in place by DST with AXA APH or the Approved Purchaser as appropriate.
Sale Escrow Delivery Date	means, for each Completion Escrow Document, the date that is the later of: (a) the date that is [15] Business Days after the date of this Agreement; and (b) such later date as NWMHL, AXA APH, the Approved Purchaser and the Approved Sale Escrow Agent may agree in writing, provided that such date is no later than [2] Business Days after the date on which all of the conditions precedent described in clause 3.3 of this Undertaking have been satisfied and not waived (subject to clause 3.4).
Sale Escrow Deed	the deed of that name entered into between NWMHL, AXA APH, the Purchaser and the Approved Sale Escrow Agent dated [XXXX] and attached as Confidential Schedule 12.
Scheme	the scheme of arrangement discussed in clause 2.2.
Scheme Effective Date	the date on which the Scheme becomes Effective pursuant to section 411(10) of the Corporations Act.
Scheme Implementation Date	completion of the acquisition by NWMHL of legal and beneficial ownership of 100% of the issued share capital of AXA APH pursuant to the Scheme and a share sale deed between AXA APH and NAB dated 30 March 2010.

Term	Meaning
Scheme Orders	orders of the court made pursuant to section 411(4)(b) (and, if applicable, section 411(6)) of the Corporations Act in relation to the Scheme.
Service Provider	the provider of Transitional Services to the Approved Purchaser, being AXA APH (before the Scheme Implementation Date) and NWMHL (after the Scheme Implementation Date).
Statements of Work	the Purchaser Product Capability SOW and the Platform Enhancements SOW.
Subsidiary	has the meaning given to that term in the Corporations Act, provided that an entity will also be deemed to be a Subsidiary of a body corporate if it is controlled (within the meaning of that term provided by Pt 1.2, Div 6 of the Corporations Act) by that body corporate.
Transfer Deed	the deed of that name between NMCS, DST and the Approved Purchaser dated [XXXX] under which the transfer of the Statements of Work are effected.
Transitional Services	the services described in clause 2 of Schedule 1.
Transitional Services Agreement	the agreement attached as Confidential Schedule 11 between the Approved Purchaser, AXA APH and NWMHL dated [insert date] under which NWMHL and AXA APH agree to provide Transitional Services to the Approved Purchaser.
Undertaking	is a reference to all the provisions of this document, including its Schedules.
Wealth Fund	means the North Personal Superannuation Plan and the North Personal Pension Plan in the Wealth Personal Superannuation and Pension Fund (ABN 92 381 911 598) established and operated under a trust deed dated 11 September 2007, as modified or replaced from time to time, excluding for the avoidance of doubt, the Summit Personal Superannuation Plan, the Summit Personal Pension Plan, the Limon Plan, the Remcon Plan, the ipac iAccess - Portfolio Planning Solutions Personal Superannuation Plan, the ipac iAccess - Portfolio Planning Solutions Allocated Pension Plan, the ipac iAccess Strategic Service Personal Superannuation Plan, ipac iAccess Strategic Service Allocated Pension Plan, the Generations Personal Superannuation Plan, the Generations Personal Pension Plan and the iAccess Personal Superannuation Plan in the Wealth Personal Superannuation and Pension Fund.

Interpretation

13.2 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) Headings are inserted for convenience only and do not affect the interpretation of this Undertaking.
- (b) If the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day.
- (c) A reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision.
- (d) A reference in this Undertaking to any company includes its Related Bodies Corporate.

- (e) A reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced.
- (f) A reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking.
- (g) An expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency.
- (h) Where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning.
- (i) A word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders.
- (j) A reference to the word 'include' or 'including' is to be construed without limitation.
- (k) A construction that would promote the purpose or object underlying the Undertaking (whether expressly stated or not) shall be preferred to a construction that would not promote that purpose or object.
- (l) Material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking.
- (m) In determining whether consideration should be given to any material in accordance with clause 13.2(l), or in considering any weight to be given to any such material, regard shall be had, in addition to any other relevant matters, to:
 - (i) the effect that reliance on the ordinary meaning conveyed by the text of the clause would have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) the need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns.
- (n) The ACCC may authorise the Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose.
- (o) In performing its obligations under this Undertaking, AXA APH will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking.

Executed by AXA Asia Pacific Holdings Limited, ABN 78 069 123 011 in accordance with s 127 of the Corporations Act by or in the presence of

by:

Signature of Director

Signature of Director/Secretary

Name of Director (please print)

Name of Director/Secretary (please print)

Date:

Accepted by the ACCC pursuant to section 87B of the *Trade Practices Act 1974*

Graeme Julian Samuel
Chairman
Date:

Services to be acquired from or provided to the Approved Purchaser

1 Platform administration services

The platform administration services to be acquired by NMMT (for itself and on behalf of the other relevant AXA APH product issuers) from the Approved Purchaser are the (product and fund) services that were provided by AXA APH in relation to the Wealth Fund, the North IDPS and the North Guarantees through the Divestiture Business during the 12 month period prior to the commencement of the Platform Administration Services Agreement, including, but not limited to the types of services outlined below:

- ensuring the availability of the North investment platform based on the Bluedoor Software operated by the Approved Purchaser;
- maintaining records and record keeping relating to members, advisers and transactions;
- processing of member transactions;
- benefit and redemption processing;
- providing member and adviser access to the North investment platform based on the Bluedoor software operated by the Approved Purchaser;
- providing a service centre for the purpose of dealing with member and adviser queries;
- dealing with member enquiries and complaints;
- loading disclosure and other documents relating to the Wealth Fund, the North IDPS and the North Guarantees on the website used by the Approved Purchaser as the online member and adviser interface to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser (**Website**);
- updating and making required changes to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser;
- maintaining platform administration manuals;
- providing maintenance services to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser, including the Website;
- providing periodic reports in relation to the North Products and the Wealth Fund;
- providing all information necessary for the returns and accounts of the relevant AXA APH product issuers and other requested information and reports;
- providing regular service standard reports; and
- other agreed administration services.

2 Transitional services

At the option of the Approved Purchaser, the transitional services to be provided by the Service Provider, being AXA APH (before the Scheme Implementation Date) and NWMHL (after the Scheme Implementation Date) to the Approved Purchaser are as follows:

- hosting of the Bluedoor Software on the computer hardware on which that software (to the extent it was licensed to NMCS under the Existing Bluedoor Agreement prior to the Divestiture Date) was installed prior to the date of the Transitional Services Agreement (**Host Systems**), including the following services (each to the extent performed by AXA APH in relation to those systems during the 12 month period prior to the Divestiture Date):
 - provision of infrastructure and security in relation to the North applications;
 - application and interface support;
 - disaster recovery and support; and
 - business continuity planning, testing and support;
- provision of telephone hardware, call recording and storage of recorded calls in connection with the Divestiture Business (as necessary to perform the Platform Administration Services), and to the extent provided by AXA APH in relation to the Divestiture Business during the 12 month period prior to the date of the Transitional Services Agreement;
- transfer of AXA APH's contractual entitlements with third parties to the Approved Purchaser, to the extent relating solely to provision of telephone lines and routing of calls relating to the Divestiture Business;
- provision of access to the data networks between the leased premises and the Host Systems to facilitate access to the Bluedoor Software;
- provision of volume forecasting in relation to the number of members and advisers using the North platform, to the extent provided by AXA APH in relation to the Divestiture Business during the 12 month period prior to the date of the Transitional Services Agreement;
- training services in relation to the North Products and any changes to those products from time to time;
- the following services, each to the extent performed by AXA APH for the Divestiture Business during the 12 month period prior to the Divestiture Date, and based on transactions recorded in data provided by the Approved Purchaser under the Platform Administration Services Agreement:
 - daily bank reconciliations for accounts relating to North Products and cash accounts of Wealth Fund members and North IDPS investors;
 - distribution of interest to cash accounts of Wealth Fund members and North IDPS investors based on calculations provided in data provided by the Approved Purchaser under the Platform Administration Services Agreement ;
 - payment of properly authorised fees, levies and expenses (including insurance premiums) in relation to the Wealth Fund, the North IDPS and the North Guarantees on behalf of the Approved Purchaser;
 - month end account reconciliations (including suspense account, benefit payment account and compensation account);
 - investigation and rectification in AXA APH records of investment option trade exceptions;
 - investigation and rectification in AXA APH records of investment option unit price exceptions;
 - investigation and rectification AXA APH records of income processing and tax component exceptions;
- the following services, each to the extent performed by AXA APH for the Divestiture Business during the 12 month period prior to the Divestiture Date:
 - payroll services for Personnel who accept an offer of employment with the Approved Purchaser;
 - support and maintenance of interface between the Bluedoor net Software and AXA APH's general ledger software; and

- production of cheques for payments to members of and investors in the North Products based on data provided by the Approved Purchaser under to the Platform Administration Services Agreement; and
- services other than the services described above, agreed by the Service Provider and the Approved Purchaser as projects (and governed by agreed project plans), or under a separation plan providing for the transition of hosting services (as described above) to the Approved Purchaser's IT environment.

Confidential Schedule 2

Confidential Schedule 3

Confidential Schedule 4

Confidential Schedule 5

Confidential Schedule 6

Confidential Schedule 7

Confidential Schedule 8

Confidential Schedule 9

Confidential Schedule 10

Confidential Schedule 11

Confidential Schedule 12

Confidential Schedule 13

Confidential Schedule 14

Confidential Schedule 15

Sale of the Divestiture Business

1.1 The exclusions are as follows:

- (a) the New Bluedoor Agreement;
- (b) the following services:
 - (i) carriage services (within the meaning given to that term by the *Telecommunications Act 1997* (Cth)) (other than any telecommunications service expressly included in the Transitional Services);
 - (ii) any services which the separation plan referred to in clause 2 of Schedule 1 states it is the responsibility of the Approved Purchaser to acquire;
 - (iii) premises maintenance services;
 - (iv) utilities services (including water, electricity and gas services);
 - (v) product development, product management and marketing services and advice;
 - (vi) operational and regulatory risk management services and advice;
 - (vii) legal and compliance services and advice;
 - (viii) accounting, audit, actuarial and tax services and advice;
 - (ix) custody, investment advisory and investment management services and advice;
 - (x) adviser relationship management services and advice; and
 - (xi) the provision of any services which a person conducting a business in the nature of that conducted by the Approved Purchaser would in the ordinary course of conducting that business reasonably be expected to perform for itself or acquire from third parties, and which do not relate specifically to the provision of the Platform Administration Services; and
- (c) each contract between AXA APH and a third party which is relevant to the services and technical resources to be provided or made available to the Approved Purchaser under the Transitional Services Agreement.

1.2 The exclusions are as follows:

- (a) the matters referred to in clause 1.1(b) of this Schedule; and
- (b) the services and technical resources to be provided or made available to the Approved Purchaser under the Transitional Services Agreement.